

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: Triman Industries is the distributor for Kollmorgen

Vendor City/State: Morristown, New Jersey

Cage: 0ZBE8

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

Qty 20, PN: 957237, Brush Ring, [REDACTED]
Qty 10, PN: 949660, EL Brush Ring Assy, [REDACTED]
Shipping Cost [REDACTED]
Triman Industries, Inc. is the authorized distributor for the Kollmorgen Assemblies.
The item lead time is [REDACTED]
Total Cost [REDACTED]

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☒ A. ONLY ONE RESPONSIBLE SOURCE
- ☐ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

These brush ring assemblies are custom components, specifically engineered for direct integration into the Multi-Spectral Targeting System's (MTS) Turret Assembly Unit. These items were integrated by Raytheon Technologies, the prime integrator for the MTS, and are the only components qualified for the current system design.

2. **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

Triman Industries holds the exclusive authorization for the distribution of these specific components.

3. **OTHER REASONS.** Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

Sourcing these items from a supplier other than the existing qualified vendor is impractical due to the absence of technical documentation, such as drawings and assembly instructions. Furthermore, acquiring them from an alternate supplier would necessitate extensive and costly qualification testing, which is not recoverable given the low procurement quantity.

Enabling competitive procurement for the brush ring assemblies would require a complete reverse-engineering effort. The substantial costs and time involved in this process, along with qualifying a new vendor, would significantly outweigh any potential savings gained from competition.

To meet the Navy's operational needs, this procurement must be sole-sourced to the Original Equipment Manufacturer (OEM), Kollmorgen, through their distributor, Triman Industries, as they are the only vendor capable of meeting the exact specifications. There is insufficient time to reverse engineer the component and conduct a competitive procurement. Awarding a contract to any other source would result in an estimated [REDACTED] in additional costs to the Government and a [REDACTED] schedule delay.

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

[Redacted Signature Area]

Signature

Name (Printed) / Phone #

Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

[Redacted Signature Area]

Contracting Officer Signature

Name (Printed) / Phone #

Date